OPEN LETTER · STEVE PROTHERO · OWNER

Questions to the Greenway Terraces Committee on the proposed common property battery

Sent 20 October 2026 · To The Executive Committee, Greenway Terraces (UP12457) · Response requested by 17 November 2026

Dear Committee Members,

I refer to the committee's statement concerning the proposed common property battery:

“Once the battery is operational it will be charged by surplus solar power that cannot be sold to the grid.”

****My first question is: Does the Owners Corporation own any solar panels?**** **My understanding is that it does not. If that is correct, I request an explanation of where this electricity will come from and how the Owners Corporation will obtain the legal right to use it.**

Specifically, please address the following:

****1. Source and ownership of electricity****

- **Who owns the solar panels generating the electricity?**
- **Is the electricity coming from individual townhouse owners, the electricity grid or another provider?**
- **What evidence establishes that this electricity cannot be sold to the grid?**

****2. Legal entitlement****

- **If the electricity is generated by privately owned solar panels, how does the Owners Corporation acquire the legal right to use it?**
- **Have the owners concerned consented, and will they be compensated?**
- **What agreements or legal advice establish the Owners Corporation's entitlement to this electricity?**

****3. Technical arrangements****

- **How will the electricity reach the battery?**
- **Will the battery connect to individual properties, common property electrical infrastructure or the distribution network?**
- **What arrangements have been made with Evoenergy or an electricity retailer?**

****4. Financial justification****

- **What is the total cost of purchasing and installing the battery?**
- **Will the Owners Corporation pay for the electricity used to charge it?**

- **What are the projected annual net savings, maintenance costs, battery lifespan and payback period?**
- **Has a financial business case been prepared using actual electricity consumption and generation data?**

5. Governance and approval

- **What approvals have been obtained, and what expenditure has already been authorised?**
- **Will the technical assessment, financial business case and relevant agreements be made available to owners?**

Why this matters

Electricity generated by privately owned solar panels does not automatically belong to the Owners Corporation. Its use must be supported by an appropriate legal or contractual arrangement.

I am not suggesting any unlawful conduct. However, ACT legislation addresses the dishonest abstraction or diversion of electricity, making it important that the legal basis for the proposed arrangement is clearly established.

With 151 townhouse owners responsible for common property expenditure, we are entitled to understand how this proposal works, whether the electricity can lawfully be obtained and whether the investment represents value for money.

I request a written response addressing these questions, supported by the relevant documentation, and confirmation of when that response will be provided.

Yours sincerely,

Stephen Prothero
Lot Owner – Greenway Terraces
UP12457
